

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 843

By: Murdock of the Senate

and

Dobrinski and Newton of the
House

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10 An Act relating to school district boards of
11 education; amending 70 O.S. 2021, Sections 5-113 and
12 5-113.1, which relate to a prohibition on certain
13 relationships between board members and school
14 district employees; modifying statutory language;
15 modifying exception to certain prohibition; updating
16 statutory language; providing an effective date; and
17 declaring an emergency.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-113, is
20 amended to read as follows:

21 Section 5-113. A. Except as otherwise provided in this
22 section, no person shall be eligible to be a candidate for or serve
23 on a board of education if the person is currently employed by the
24 school district governed by that board of education or is related
 within the second degree by affinity or consanguinity to any other
 member of the board of education or to any employee of the school

1 district governed by the board of education. The purpose of this
2 section is both to prohibit persons who are related within the
3 second degree by affinity or consanguinity from serving
4 simultaneously on the same board of education of any school district
5 of this state and to prohibit persons who are related within the
6 second degree of consanguinity or affinity to an employee of a
7 school district from serving on the board of education governing the
8 school district while such relative is employed except as otherwise
9 provided in this section.

10 B. If the relationship is based on affinity, the prohibitions
11 in this section shall not apply to prevent members of boards of
12 education who are serving on September 1, 1995, from serving the
13 term for which they were elected or from serving successive terms
14 for which they may be elected, unless it is the member's spouse who
15 is a member of the board of education or an employee of the school
16 district~~ti~~ then such prohibitions shall apply.

17 C. The prohibitions set forth in this section shall not apply
18 if:

19 1. The person related to the board member within the second
20 degree of affinity or consanguinity is employed as a substitute
21 teacher by the school district pursuant to the provisions of Section
22 6-105 of this title or as a temporary substitute support employee if
23 the school district has an ~~Average Daily Membership~~ average daily
24 membership (ADM) of less than five thousand (5,000); or

1 2. The school district has an ADM of less than ~~four hundred~~
2 ~~(400)~~ five hundred fifty (550), the board of education has adopted a
3 policy providing for such candidate eligibility and the board member
4 who is related within the second degree by affinity or consanguinity
5 to any employee of the school district governed by the board of
6 education complies with the provisions of subsection E of Section 5-
7 113.1 of this title.

8 D. Any member of a board of education who violates the
9 provisions of this section shall be subject to the penalties
10 prescribed by Sections 485 and 486 of Title 21 of the Oklahoma
11 Statutes.

12 SECTION 2. AMENDATORY 70 O.S. 2021, Section 5-113.1, is
13 amended to read as follows:

14 Section 5-113.1. A. Except as otherwise provided in this
15 section, no person may be employed or put under contract by a school
16 district if that person is related to a member of the board of
17 education of that school district within the second degree of
18 consanguinity or affinity. A teacher or employee already under
19 contract to or otherwise employed by the school district at the time
20 the relationship is established may continue in ~~said~~ such
21 employment. Except as otherwise provided, a board member already
22 serving at the time the relationship is established may serve out
23 the term for which the member was elected but shall not be eligible
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1 to be a candidate for or serve successive terms of office for which
2 the member may be elected.

3 B. The provisions of this section shall not prevent a board
4 member from serving successive terms of office if otherwise eligible
5 under the provision of Section 5-113 of this title. No member of
6 the board of education who has resigned from the board before the
7 term of the person has expired may be reappointed to the board to
8 complete the remainder of the term if a teacher or employee related
9 to the resigned member of the board within the second degree of
10 consanguinity or affinity was put under contract or otherwise
11 employed by the school district after the board member resigned.

12 C. The provisions of this section shall not prevent a person
13 who is related to a member of the board of education within the
14 second degree of consanguinity or affinity from being employed by
15 the school district as a substitute teacher pursuant to the
16 provisions of Section 6-105 of this title or as a temporary
17 substitute support employee if the school district has an ~~Average~~
18 ~~Daily Membership~~ average daily membership (ADM) of less than five
19 thousand (5,000).

20 D. The provisions of this section shall not prevent a person
21 who is related to a member of the board of education within the
22 second degree of consanguinity or affinity from being employed by
23 the school district if the school district has an ~~Average-Daily~~
24 ~~Membership~~ average daily membership (ADM) of less than ~~four hundred~~

1 ~~(400)~~ five hundred fifty (550) and the board of education has
2 adopted a policy providing for such employment.

3 E. Any member of a board of education who is related to a
4 teacher or other employee of the district within the second degree
5 of consanguinity or affinity shall not attend or participate in any
6 regular or executive session of the board held to consider any
7 personnel matter or litigation relating to ~~said~~ such teacher or
8 employee. The member may vote on collective bargaining agreements
9 or the renewal of contracts as a group if the vote is necessary to
10 form a quorum of the board of education members. If more than one
11 member of the board of education is related to a teacher or
12 employee, only the minimum number of those members which is
13 necessary to form a quorum shall be allowed to vote. Each board of
14 education so affected shall adopt a written policy establishing
15 procedures on when such a member may vote on the renewal of
16 contracts or collective bargaining agreements.

17 F. Any member of a board of education who violates the
18 provisions of this section shall be subject to the penalties
19 prescribed by Sections 485 and 486 of Title 21 of the Oklahoma
20 Statutes.

21 SECTION 3. This act shall become effective July 1, 2026.

22 SECTION 4. It being immediately necessary for the preservation
23 of the public peace, health, or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.
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4 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION OVERSIGHT, dated
5 04/13/2026 - DO PASS.
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